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2024 MAY 01 01:45 PM
KING COUNTY
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CASE #: 23-2-11352-7 SEA

SUPERIOR COURT OF WASHINGTON
COUNTY OF KING

Petitioner
ZACKARIAH BENNETT

And Respondent

MELVINA MANNING

NO. 23-2-11352-7 SEA

**Respondent's motion for Summary
Judgment**

Comes now **MELVINA MANNING**, by and through her Attorney of Record, **NANCY A. GASS**, and seeks summary judgement dismissal of claims by Petitioner in this matter.

MEMORANDUM IN SUPPORT OF MOTION

BACKGROUND

- Melvina Manning has had legal custody of TB since 2008.
- Zackariah Bennett and his then wife Kelly were being investigated by Colorado's Child Protective Services (CPS). They asked Ms. Manning to take the child (TB) before CPS performed an in-home evaluation of Mr. and Mrs. Bennett's (Kelly) home.
- When the Mannings brought TB to Washington, he was way behind in development for a 14-month-old child; he could not walk, crawl, or feed himself. The Mannings believed this to be related to Mr. Bennett and his wife Kelly's use of drugs and alcohol resulting in neglect of the young boy.

- 1 • Mr. Bennett ultimately ended up in prison. TB's mother did not feel able to properly
2 care for Timothy. Custody of TB was awarded to Ms. Manning. TB has lived with
3 Ms. Manning since 2008.
- 4 • Mr. Bennett's parental rights were terminated on March 18, 2013 by The Superior
5 Court of Washington for Snohomish County. *Ex. A pp 1-3.*
- 6 • As detailed in Ms. Manning's response to the complaint filed by Mr. Bennett, Mr.
7 Bennett showed up at the Manning's home on June 23, 2019 when he knew Ms.
8 Manning and her husband were away. Mr. Bennett sat in his car honking his horn
9 and yelling for TB to come outside. His then girlfriend tried to make entry into the
10 home uninvited. Fortunately, the door was locked and she failed to make entry. TB
11 did not know who was trying to enter his home while he was there alone, and
12 believed it was a kidnapping attempt. *Ex. B.*
- 13 • The next attempt Mr. Bennett made to contact TB was on June 12, 2022.
- 14 • Ms. Manning's dogs were barking and someone was knocking on the door. When
15 she opened the door there were two young children at her door. They indicated they
16 were TB's siblings and that they wanted to meet him. Mr. Bennett's girlfriend or
17 wife was standing down the walkway.
- 18 • Mr. Bennett approached the porch and demanded to see TB who came to the door
19 and told Mr. Bennett that he didn't want to see him. *Ex. B.*
- 20 • Mr. Bennett became agitated and aggressive and demanded that TB meet his
21 siblings. TB went back to his room. *Id.*
- 22 • Based on his behavior, Ms. Manning sought a protection order. The court issued an
23 order protecting Melvina Manning and TB from Mr. Bennett's aggressive behavior
24 and threats. This was the second order issued in King County to protect TB from
25 Mr. Bennett. The first order was in 2008.

26 **ISSUES PRESENTED**

Should this Court find that Ms. Manning is entitled to summary judgment in this case?

DISCUSSION

Summary Judgement

1 Summary judgment is appropriate where there are no genuine issues of material fact
2 and the moving party is entitled to judgment as a matter of law. *CR 56(c), Greenfield v.*
3 *Western Heritage Ins. Co.*, 226 P.3d 199, 154 Wn. App. 795 795 (Wash. App. 2010).
4 All facts and reasonable inference are considered in the light most favorable to the
5 nonmoving party. *Id.* In this case, Ms. Manning is entitled to summary judgment as a
6 matter of law. All of the elements presented in Mr. Bennett's case have been
7 adjudicated. He is not entitled to damages simply because a Domestic Violence
8 Protection order was issued against him. Mr. Bennett has no custodial or parental rights
with respect to TB (see discussion below).

9 Allegation of Custodial Interference, Tortious Interference, and Alienation of
10 Affections.

11 In his complaint (items 7 & 8), Mr. Bennett makes claims of Custodial Interference
12 in the first degree under RCW 9A.40.060(1)(a)(c)(d) and Tortious Interference with
13 Parental Rights and Alienation of Affections. *Bennet Complaint at p. 2.*

14 Mr. Bennett has no right to bring felony charges against Ms. Manning in a civil suit
15 RCW 9A.40.060 is a criminal statute and a class C Felony. Felony charges are to be
16 brought at the discretion of the relevant prosecutor's office not by a civilian seeking
damage against the legal custodian of a minor child.

17 There is no dispute that Ms. Manning has legal custody of TB. Furthermore, Mr.
18 Bennett voluntarily gave up his parental rights on March 1, 2013. *Ex. C.* He has no
19 rights to be interfered with and thus this portion of his complaint should be dismissed.
20 Mr. Bennett knows his parental rights have been terminated. When Ms. Manning sought
21 child support assistance through Washington's Division of Child Support (DCS), she
22 was denied because Mr. Bennett's parental rights had been terminated. *Ex. G.* Despite
this, Mr. Bennett continues trying to assert parental rights.

23 Mr. Bennett further cites *Wyatt v McDermott*, in which the court concluded that a
24 cause of action for tortious interference with parental rights is consistent with common
25 law. *Bennett Complaint at p. 2.* This is a Virginia case and not binding on Washington
26 Courts. However, even applying all of the elements laid out by Mr. Bennett with respect
to the Wyatt case, his claim fails on all four elements.

1 According to Mr. Bennett there are four elements the court should look at when
2 evaluating tortious interference with parental rights. The elements are:

3 1. The complaining parent has a right to establish ... a relationship with his/her minor
4 child.

5 a. Mr. Bennett fails the first element. He voluntarily gave up his parental rights
6 March 1, 2013. *Ex. C.* The court in Snohomish County signed an order
7 terminating Mr. Bennett's parental rights on March 18, 2013. *Ex. A.* Mr.
8 Bennett does not have a right to establish a relationship with TB.

9 2. A party outside of the relationship ... interfered ... preventing the complaining
10 parent from exercising his/her custodial or parental rights.

11 a. Once again, Ms. Manning has legal custody of TB. Mr. Bennett has no
12 parental or custodial rights to interfere with. Mr. Bennett's claim fails this
13 element.

14 3. The outside party's intentional interference caused harm to the complaining parent's
15 custodial or parental relationship with his/her child.

16 a. Mr. Bennett has no parental or custodial rights with respect to TB. Ms.
17 Manning has had uninterrupted custody of TB since 2008 and Mr. Bennett
18 gave up his parental rights in 2013. *Ex. C.* Mr. Bennett's claim fails this
19 element.

20 4. Damage resulted from such interference.

21 a. Mr. Bennett claims some emotional hurt stemming from the fact that he
22 doesn't have a relationship with TB. *Bennett Complaint at p.3.* Any lack of a
23 relationship between TB and Mr. Bennett can be laid at Mr. Bennett's feet.
24 Ms. Manning has encouraged him to seek reunification therapy with TB. *Ex.*
25 *F at p. 1, item 1.* Instead of seeking reunification in a reasonable manner, Mr.
26 Bennett shows up unannounced at the Manning residence honking his car
horn and yelling demands to TB. As TB states in his declaration, he thought
he was being kidnapped. *Ex. B.* He was frightened and has suffered anxiety
attacks based on Mr. Bennett's behavior. Ms. Manning did not cause any
damages to Mr. Bennett. His claim fails this element.

1 Res Judicata

2 “Res judicata refers to the preclusive effect of judgments, including relitigating
3 claims and issues that were litigated, or might have been litigated in a prior action.”
4 *Loveridge v. Fred Meyer, Inc.*, 125 Wn.2d 759, 763, 887 P.2d 898 (1995). The purpose
5 is to curtail multiple actions and harassment in the courts. *Id.* Res judicata is an
6 affirmative defense that bars relitigation of claims and issues. *Id.* at p764.

7 The issues presented in this matter by Mr. Bennett have already been litigated in the
8 Domestic Violence Matter (Cause No. 22-2-09380-3). Furthermore, Mr. Bennett filed
9 an appeal (Appellate Court Cause #844450-4) asking that the Domestic Violence
10 restraining order be overturned. His motion was denied. *Ex. D.* Mr. Bennett file a
11 motion for reconsideration of the matter with the Appellate Court. His motion for
12 reconsideration was denied. *Ex. D.*

13 He has now filed, what is being treated as a Petition seeking review by the
14 Washington Supreme Court. *Ex. E.* Mr. Bennett has refused to accept the finality of the
15 Washington Court’s decisions and is consistently filing motions. Ms. Manning is feeling
16 harassed by Mr. Bennett’s ongoing refusal to accept the Court’s decisions.

17 This court should dismiss Mr. Bennett’s claims as the matter has been decided and
18 relitigating the same issues between the same parties serves no purpose.

19 As laid out by the Loveridge court, for the doctrine of Res judicata to apply, a prior
20 judgment must have a concurrence of identify with a subsequent action in “(1) subject
21 matter, (2) cause of action, and (3) persons and parties, and (4) the quality of the persons
22 for or against whom the claims is made.” *Loveridge* , 125 Wn.2d at 764.

23 The subject matter of the of the Domestic Violence cause of action was Mr.
24 Bennett’s unwanted and unannounced visit to the Manning residence. The subject
25 matter before This Court is Mr. Bennett’s unwanted and unannounced visit to the
26 Manning residence.

 The parties to the domestic violence matter were Melvina Manning, and Zackariah
 Bennett. The parties in the matter before This Court are Melvina Manning and
 Zackariah Bennett.

1 Collateral Estoppel

2 "The purpose of the doctrine of collateral estoppel is to promote judicial economy by
3 avoiding relitigation of the same issue, to afford the parties the assurance of finality of
4 judicial determinations, and to prevent harassment of and inconvenience to litigants."

5 *Hanson v City of Snohomish, et al*, 121 Wn.2d 552, 562121 P.2d 295 (1993).

6 There are four elements to the Doctrine of Collateral Estoppel;

7 (1) the issue decided in the prior adjudication is identical with the one presented in the
8 second action; (2) the prior adjudication must have ended in a final judgment on the
9 merits; (3) the party against whom the plea is asserted was a party or in privity with the
10 party to the prior adjudication; and (4) application of the doctrine does not work an
11 injustice. *Hanson*, 121 Wn.2d at 563.

12 This matter meets the four elements of Collateral Estoppel.

13 1) The issues decided in the domestic violence matter are the same issues Mr. Bennett is
14 presenting in this action.

15 2) The court issued a final order in the domestic violence matter on the merits presented
16 in court. Further, the Appellate Court refused to overturn the prior judgement. *Ex. D*.

17 3) The parties in this matter are the same parties in the domestic violence cause of
18 action. Both Mr. Bennett and Ms. Manning had the opportunity to present their cases
19 before the judge in the domestic violence cause of action. Just because he didn't like the
20 results, does not give him the right to keep harassing Ms. Manning through the courts to
21 relitigate the issues.

22 4) Application of this doctrine would not work an injustice. Mr. Bennett showed up
23 unannounced at Ms. Manning's home making demands he was not entitled to. He has
24 frightened TB and caused TB to have an anxiety attack. *Ex. B*. Mr. Bennett is now
25 bringing this action against Ms. Manning because he didn't get his way in the Domestic
26 Violence Case. There is no injustice in denying Mr. Bennett damages when he was the
27 one acting badly in the event.

28 This case should be dismissed under the doctrine of collateral estoppel as the issues
29 have already been litigated and a judgement entered in a prior case between the same
30 parties.

1 Defamation, Infliction of Emotional Distress, Fraud, Purjury [sic], Abuse of Process,
2 Private Communications

3 Most of Mr. Bennett's remaining claims are claims associated with the events on June
4 12, 2022. *Bennett complaint items 1, 2, 3, 4, 5, and 6.* He makes a few unsubstantiated
5 allegations regarding statements made in a prior case; cause number 08-3-03956-4.

6 As to the allegations regarding the June 12, 2022 incident, Mr. Bennett had the
7 opportunity to be heard, was heard by that court, and that court found that Ms. Manning
8 and TB needed to be protected from Mr. Bennett's aggressive behavior. The court
9 issued a one year Domestic Violence Protective Order against Mr. Bennett on August 5,
10 2022.

11 As to Mr. Bennett's claims related to cause number 08-3-03956-4 any claim made
12 in connection with that case had a 10 year, at the most, statute of limitations. *RCW*
13 *4.16.020(2)*, *Bennett complaint 1aI, 4a, 5a, 7.* Mr. Bennett cannot bring a cause of action
14 outside of the statute of limitations simply because he is angry about a DV Protection
15 Order being issued years later. These claims should be dismissed.

16 The balance of Mr. Bennetts's claims have been or should have been brought up in
17 the domestic violence protection order hearing on August 5, 2022.

18 Mr. Bennett has made these same claims in the Domestic Violence matter. Ms.
19 Manning responded to his allegations. *Ex. F.*

20 The DV case did not go the way he wanted, so Mr. Bennett is now bringing the
21 same allegations in This Court hoping for a different answer.

22 Collateral Estoppel should be applied to Mr. Bennetts allegation. All four of the
23 elements of Collateral Estoppel are met. These allegations were adjudicated as part of
24 the DV Protection Order. That case ended in a final judgement on the merits with the
25 court finding there was sufficient cause to issue a DV Protection Order. The parties in
26 this case, Ms. Manning and Mr. Bennett are the same parties that appeared in the DV
Protection order matter. Dismissing this case would not work an injustice.

Ms. Manning and TB were concerned about Mr. Bennett's agitated and aggressive
behavior. Ms. Manning reached out to the court to help protect herself and TB. Mr.
Bennett should not be allowed to seek damages when the DV case did not go the way he

1 wanted it to. If every victim of domestic violence had to be concerned that the
2 perpetrator would be able to take them back to court seeking monetary damages, very
3 few victims would avail themselves of the protections of the Domestic Violence Statutes
4 leaving perpetrators free to behave badly.

5 **CONCLUSION**

6 This suit by Mr. Bennett is frivolous and nothing more than harassment of a women
7 who sought the court's protection for herself and her grandson. Mr. Bennett tried impose
8 his will on a minor child whom he had no custodial or parental rights over. When he
9 could not get his way with the child, he became agitated and aggressive, frightening the
10 child who suffered an anxiety attack fearing Mr. Bennett would continue his attempts to
11 force the child to his will.

12 At her grandson's request, Ms. Manning sought an order from the court to protect
13 herself and her grandson from ongoing harassment. The court found cause to issue a
14 Domestic Violence Protection order against Mr. Bennett.

15 It is clear that Mr. Bennett was not happy with the results. Since that order was
16 issued, Mr. Bennett has been filing documents with the court on a regular basis,
17 harassing Ms. Manning through the court system since he has not been allowed to do so
18 in person.

19 Ms. Manning respectfully asks This Court to provide relief by issuing an order of
20 summary judgement in her favor, hopefully stopping Mr. Bennett's ongoing harassment.

21 I declare under penalty of perjury under the laws of the state of Washington that the facts I have
22 provided on this form are true and correct to the best of my knowledge.

23 Signed at (city and state): Carnation, Washington

24 Date: 4-29-24

25 M. Manning
26 Respondent signs here

Melvina Manning
Print name

I agree to accept legal papers for this case at my lawyer's address listed below:

Nancy A. Gass
Attorney for Respondent

Nancy A. Gass WSBA # 49685
Print name and WSBA No.

4/29/24
Date

1 P.O. Box 1041; 4471 Tolt Ave Carnation WA 98014
2 *Lawyer's address* *City* *State* *Zip*

3 Email (if applicable): carnationlaw@comcast.net
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EXHIBIT A
TERMINATION OF PARENTAL RIGHTS

**CERTIFIED
COPY**

FILED

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SONYA KRASKI
COUNTY CLERK
SNOHOMISH CO. WASH

IN THE SUPERIOR COURT OF WASHINGTON FOR SNOHOMISH COUNTY

IN RE THE ADOPTION OF:

TIMOTHY E. BENNETT II

(DOB: 01/11/2007)

NO. 13-5-00050-3

**ORDER AUTHORIZING
RELINQUISHMENT, TERMINATING
PARENTAL RIGHTS AND GRANTING
CUSTODY**

THIS MATTER having come on regularly for hearing this day and the Court having read the verified Petition for Adoption and Relinquishment filed in this cause and acting upon the recommendation of Joan Ward, MSW, LICSW, who prepared a combined Pre-Post Placement Report herein, having heard argument of counsel for petitioners and having previously entered Findings of Fact and Conclusions of Law, now, therefore, it is hereby

ORDERED that Zackariah J. Bennett, the natural father of the above-named child, a boy, born in Wheat Ridge, Colorado on January 11, 2007, to Kelly J. Jovanovich, is hereby authorized to relinquish custody of said child to John Arthur Manning and Melvina Catherine Manning, husband and wife, petitioners herein; and it is further

ORDERED that the Consent to Adoption, Relinquishment of Custody and Termination of Parental Rights form signed by Zackariah J. Bennett, natural father of said child, is hereby approved and accepted and the parent-child relationship between the above-named child and Zackariah J. Bennett is hereby terminated, thereby divesting he and the child of all legal rights, powers, privileges, immunities, duties and obligations between one

ORDER AUTHORIZING RELINQUISHMENT,
TERMINATING PARENTAL RIGHTS AND
GRANTING CUSTODY - 1

**LAW OFFICES OF
MARK M. DEMARAY, INC., P.S.**
145 THIRD AVENUE SOUTH, SUITE 201
EDMONDS, WASHINGTON 98020
(425) 771-6453 · (425) 412-3873 fax

ORIGINAL

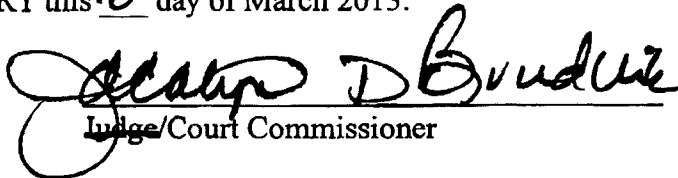
1 another as provided by law; and it is further

2 ORDERED that John Arthur Manning and Melvina Catherine Manning, petitioners
3 herein, may receive the child that is the subject of this adoption proceeding, born to Kelly J.
4 Jovanovich in Wheat Ridge, Colorado on January 11, 2007, under their temporary custody
5 and care, and their Petition for Relinquishment is hereby approved, and they are further
6 appointed legal guardians of the child with responsibility to care for and support the child
7 until further order of this court; and in addition, the petitioners or either of them, are hereby
8 given authority to obtain medical, dental, or any other required health care for said child,
9 known to them as **Timothy E. Bennett II**, and it is further

10 ORDERED that the Snohomish County Superior Court Clerk is hereby authorized
11 and directed to issue to the petitioners or undersigned attorney certified copies of this order
12 upon request without further order of this court; and it is further

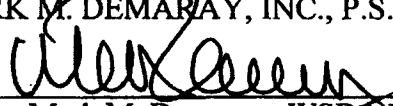
13 ORDERED that the Indian Child Welfare Act, 25 USC §1901, et seq. and the
14 Servicemembers Civil Relief Act of 2004, 50 USC §501 et seq. do not apply to this
15 proceeding.

16 DONE IN OPEN COURT this 18th day of March 2013.

17 
18 Judge/Court Commissioner

19 Presented by:

20 LAW OFFICES OF
21 MARK M. DEMARAY, INC., P.S.

22 By: 
23 Mark M. Demaray, WSBA No. 11800
24 Attorney for Petitioners
25
26

ORDER AUTHORIZING RELINQUISHMENT,
TERMINATING PARENTAL RIGHTS AND
GRANTING CUSTODY - 2

LAW OFFICES OF
MARK M. DEMARAY, INC., P.S.
145 THIRD AVENUE SOUTH, SUITE 201
EDMONDS, WASHINGTON 98020
(425) 771-6453 · (425) 412-3873 fax



County of Snohomish
I, SONYA KRASKI, Clerk of the Court, do hereby certify that the foregoing is a true and correct copy of the original now on file in my office.
In witness whereof, I hereunto set my hand and the Seal of the said Court this MAR 18 2013 day of March, 2013.
SONYA KRASKI, County Clerk
Sonya Kraski

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IN THE SUPERIOR COURT OF WASHINGTON FOR SNOHOMISH COUNTY

IN RE THE ADOPTION OF:

TIMOTHY E. BENNETT II

(DOB: 01/11/2007)

NO. 13-5-00050-3

**FINDINGS OF FACT AND
CONCLUSIONS OF LAW
RE TERMINATION OF PARENT/
CHILD RELATIONSHIP**

THIS MATTER came on regularly for hearing this day on the petition of John Arthur Manning and Melvina Catherine Manning, husband and wife, for the relinquishment of the above-named child into their care, and for the termination of the parent-child relationship between the above-named child and his biological father; the petitioners appeared through their attorney Mark M. Demaray of the Law Offices of Mark M. Demaray, Inc., P.S., and the Court having heard the evidence and reviewed the pleadings on file herein, and now, therefore, makes the following:

I. FINDINGS OF FACT

1. Child. Timothy Edward Bennett II, a boy, was born to Kelly J. Jovanovich in Wheat Ridge, Colorado on January 11, 2007.

2. Father.

2.1 Name, Address and Age. Zackariah J. Bennett, father of the child, was born on January 7, 1981, is thirty-two (32) years old and presently resides at c/o King County

FINDINGS OF FACT REGARDING
TERMINATION OF PARENTAL RIGHTS - I

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145 THIRD AVENUE SOUTH, SUITE 201
EDMONDS, WASHINGTON 98020
(425) 771-6453 · (425) 412-3873 fax

1 Correctional Facility, 500 – 5th Avenue, Seattle, Washington 98104.

2 3. Consent. The child's father Zackariah J. Bennett, has executed a Consent to
3 Adoption, Relinquishment and Termination of Parental Rights form in proper Washington
4 state statutory form in which he has agreed to the application of Washington law to this
5 adoption. That Consent form is filed herewith, he understands the consequences of his
6 actions and is not acting under fraud, duress, undue influence or mistake of fact and he is
7 mentally competent. More than 48 hours have passed since the signing of that Consent form
8 and the birth of the child, and his Consent to Adoption, Relinquishment and Termination of
9 Parental Rights should be approved and accepted at this time.

10 4. Venue. All appearing parties have agreed to jurisdiction and venue herein.

11 5. Federal Law. Neither the Indian Child Welfare Act, 25 U.S.C. § 1901 et seq.,
12 nor the Servicemembers Civil Relief Act of 2004, 50 U.S.C. § 501 et seq., apply to these
13 proceedings.

14 6. Best Interest. Termination of the natural father's parental rights herein is in
15 the best interest of the child that is the subject of this proceeding.

16 FROM THE FOREGOING Findings of Fact, the Court now makes the following:

17 **II. CONCLUSIONS OF LAW**

18 7. This Court has jurisdiction of the person of the above-named child for the
19 purpose of these adoption proceedings and has jurisdiction of the subject matter.

20 8. The Consent to Termination of Parental Rights and Adoption form which
21 have been filed herein should be approved and accepted by this Court at this time.

22 9. The parent-child relationship between the child and his biological father
23 Zackariah J. Bennett should be terminated, and the relinquishment of the child to the
24 petitioners should be approved.
25
26

FINDINGS OF FACT REGARDING
TERMINATION OF PARENTAL RIGHTS - 2

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MARK M. DEMARAY, INC., P.S.
145 THIRD AVENUE SOUTH, SUITE 201
EDMONDS, WASHINGTON 98020
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10. The Indian Child Welfare Act, 25 USC §1901 et. seq. and the Servicemembers Civil Relief Act of 2004, 50 USC §501 et. seq. do not apply to these proceedings.

DONE IN OPEN COURT this 16th day of March 2013.

B. J. Brundage
Judge/Court Commissioner

Presented by:

LAW OFFICES OF
MARK M. DEMARAY, INC., P.S.

By: Mark M. Demaray, WSBA No. 11800
Attorneys for Petitioners



EXHIBIT B

DECLARATION OF TIMOTHY EDWARD BENNETT

Superior Court of Washington For King County		No. 22-2-09380-3
<u>Melvina Catherine Manning</u> <u>05/13/1959</u> Petitioner	DOB	Declaration of <u>Timothy Edward Bennett (Name)</u> (DCLR) (Optional Use) (Clerk's Action Required)
vs. <u>Zackariah Jeremiah Bennett</u> <u>01/07/1981</u> Respondent	DOB	

This declaration is made by:

Name: Timothy Edward Bennett

Age: 15

Relationship to the parties in this action: Grandson (Melvina), Son (Zackariah)

I declare,

I do not want to see or speak with my father (Zackariah Bennett). When he first showed up and tried luring me out of the house on 6/23/2019, I thought he was a kidnapper and I felt threatened. He was honking his horn and someone was pounding on the front door. I didn't know it was him until I called my Nana (Melvina Manning). Then Zackariah made his second appearance at our home on 6/12/2022, he demanded that I speak to him. I came up to the front door, and politely told him "I don't want to see you at this time." And he responded by becoming agitated and aggressive, and demanding I meet my siblings. I felt threatened and went back to my room to continue playing video games. A few hours after he left, I had a panic attack that was caused by the incident that had occurred. The whole time he was there, he was yelling at my Nana. Ever since his appearance, I have felt threatened and I've been paranoid that he may show up again.

Your Honor, I stand with my Nana, and I request that a protection order is issued so I feel safe at home and at school.

(Attach additional single-sided pages if necessary and number them. Use form DVSTMT, Statement.)

I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at Carnation (city) WA (state) on 8/01/2022 (date).


Signature of Declarant

Timothy Bennett II
Print or Type Name

EXHIBIT C
CONSENT OF FATHER

FILED
NOV 11 2007
SNOHOMISH COUNTY
CLERK OF COURT
SNOHOMISH COUNTY

IN THE SUPERIOR COURT OF WASHINGTON FOR SNOHOMISH COUNTY

NO. 12 5 00050 3

IN RE THE ADOPTION OF:

TIMOTHY E. BENNETT II

(DOB: 01/11/2007)

CONSENT BY ALLEGED NATURAL
FATHER TO ADOPTION,
RELINQUISHMENT, TERMINATION
OF PARENTAL RIGHTS, AND
WAIVER OF RIGHT TO RECEIVE
NOTICE OF ALL PROCEEDINGS

I, Zackariah J. Bennett, the alleged natural father of the child that is the subject of this adoption proceeding, hereby declare under penalty of perjury as follows:

1. I am the alleged father of Timothy E. Bennett II, who was born to Kelly J. Jovanovich on January 11, 2007, in Wheat Ridge, Colorado. I was born on 01/07/1981, I am 32 years old and I presently reside at c/o King County Correctional Facility, 500 – 5th Avenue, Seattle, Washington 98104.

2. Believing it to be in the best interest of the child, I confirm that I desire to relinquish the child to the adoptive parents herein and hereby authorize said adoptive parents to have custody of the child and have the power and authority to authorize and provide all necessary care for the child. I desire that an Order permanently terminating any and all of my parental rights to that child be entered herein.

3. I understand that my decision to relinquish the child is an extremely important one and the legal effect of this relinquishment will be to take from me any and all legal rights and obligations with respect to the child that I may have and that an order permanently

CONSENT TO ADOPTION BY NATURAL
FATHER - 1

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LAW OFFICES OF
MARK M. DEMARAY, INC., P.S.
145 THIRD AVENUE SOUTH, SUITE 201
EDMONDS, WASHINGTON 98020
(425) 771-6453 • (425) 412-3873 fax

1
2 terminating all of my parental rights to the child will be entered by the Court. This means the
3 child will be free from all legal obligations of obedience and maintenance with respect to me
4 and shall be for all legal intents and purposes, the child, legal heir and lawful issue of the
5 adoptive parents, entitled to all rights and privileges as if the child were born to the adoptive
6 parents.

7 4. This consent is given subject to the approval of the Superior Court of the State
8 of Washington, and is to have no force or effect until approved by that Court and will not be
9 presented to the Court until a minimum of forty-eight (48) hours after it is signed, or if the
10 child is unborn, no sooner than forty-eight (48) hours after the child is born. Further, I agree
11 to jurisdiction and venue for this proceeding in Snohomish County Superior Court.

12 5. I understand this consent is revocable by me at any time prior to approval by
13 the Court by written revocation delivered to the Clerk of the Court. I understand this consent
14 can be revoked after Court approval only if said revocation is given within such forty-eight
15 (48) hour period to the person who sought my consent, either orally or in writing by me; and
16 that I must deliver or mail to the Clerk of the Court written notice of my revocation within
17 forty-eight (48) hours of giving my notice of revocation to the person who sought my
18 consent. The address of the Clerk of the Court where the consent will be presented or where
19 revocation of my consent must be delivered is: Snohomish County Superior Court Clerk,
20 Snohomish County Courthouse, 3000 Rockefeller Avenue, Everett, Washington 98201.

21 6. I understand that after this consent is approved by the Court, it is not
22 revocable (I can't take it back or change my mind) except for fraud or duress practiced by the
23 person requesting the consent, or for lack of mental competency at the time the consent was
24 executed by me and under no circumstances later than one (1) year after it is approved by the
25 Court.
26

1 7. I have been asked whether or not I have any Native American (Indian) or
2 Alaska Native ancestry, and I provide the following information in response to that question.

3
4 (Note to father: Include name of any tribe(s) in your ancestry and indicate whether or not
5 you are a member): _____
6 _____

7 8. I am not a member in the military service of the United States.

8 9. I hereby consent to the adoption of the above-named child by the petitioners
9 herein and consent and agree to the termination of any and all of my parental rights, whatever
10 they may be. I understand this consent may be voluntarily executed without disclosure of the
11 full names or other identification of the adoptive parents, although I do know them in this
12 case.

13 10. I hereby waive notice of presenting this consent to the Court and notice of
14 further proceedings in this matter, including proceedings for relinquishment, termination of
15 parental rights, and adoption. By this waiver, I understand that I will not receive notice of
16 any court proceedings concerning the termination of my parental rights or the adoption of the
17 child that is the subject of this adoption proceeding.

18 11. In executing this relinquishment and consent, I am not acting under any fraud,
19 duress or influence of anyone. I have read, or have had someone read to me, this document
20 and hereby declare that I understand the same. I also understand there are social services and
21 counseling services available in the community, and there may be financial assistance
22 available through State and local governmental agencies. I understand I have the right to
23 consult with my own attorney regarding this relinquishment and consent regarding these
24 proceedings and that Mark M. Demaray is the attorney for the adoptive parents. I
25 acknowledge that I have received a copy of this document for my own records.
26

CONSENT TO ADOPTION BY NATURAL
FATHER - 3

LAW OFFICES OF
MARK M. DEMARAY, INC., P.S.
145 THIRD AVENUE SOUTH, SUITE 201
EDMONDS, WASHINGTON 98020
(425) 771-6453 · (425) 412-3873 fax

1 12. I have selected Brian Todd, who is at least
2 eighteen (18) years of age and whose address appears below, to witness my signature on this
3 consent. This person's relationship to me is Attorney.

4 Pursuant to the provisions of RCW 9A.72.085, I hereby declare under penalty of
5 perjury under the laws of the State of Washington that my statements are true and correct.

6 DATED this 1st day of March 2013, at 10 a.m./p.m.

8 Zack Bennett
9 Zackariah J. Bennett

10 Witness: Brian Todd

11 Address: Law Office of Brian J Todd

6523 California Ave SW #179

12 Phone: Seattle, WA 98136

Age: over 18

13 Did Witness Check ID?: yes - wristband



EXHIBIT D

APPELLATE COURT DECISIONS

IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON

MELVINA MANNING,

Respondent,

v.

ZACKARIAH JEREMIAH BENNETT,

Appellant.

No. 84450-4-I

DIVISION ONE

UNPUBLISHED OPINION

HAZELRIGG, A.C.J. — Zackariah Bennett seeks reversal of a domestic violence protection order based on a number of purported evidentiary errors. Because Bennett acknowledges that the order expired two months before his opening brief was filed and fails to demonstrate why this panel should nonetheless reach the merits of his challenge, the appeal is dismissed as moot.

FACTS

Zackariah Bennett is the father of minor son, TB. Melvina Manning, Bennett's mother and TB's grandmother, has had legal custody of TB since 2008.¹ The parties appear to agree that Bennett was incarcerated for a significant portion of the time since Manning was granted custody of TB. The parties dispute the timeline of attempted contact between Bennett and TB.

On June 17, 2022, Manning filed a petition for a domestic violence protection order (DVPO) in King County District Court, seeking to prevent Bennett

¹ The trial court referenced a 2008 custody order by case number and the same case is noted by Manning. Bennett acknowledges that Manning has had custody since 2008.

from contacting her or TB based on two particular incidents. Manning outlined her assertions about Bennett's conduct in the petition and attached a declaration from TB about the interactions. On June 21, 2022, the court entered a temporary order for protection restraining Bennett from contacting Manning or TB, and set a hearing date for July 1, 2022. At the July 1 hearing, the court ordered a three-week continuance based on Bennett's request for time to gather documentation to support his case. Bennett also sought a subpoena for footage from Manning's Ring² camera so that it could be reviewed by the court as evidence of what transpired between the parties on June 12, 2022. The court informed him that the state law governing the proceedings, former chapter 26.50 RCW (2019) and chapter 7.105 RCW,³ did not permit the court to grant subpoenas or other discovery requests on Manning. On July 22, 2022, the court granted another continuance to give Bennett an opportunity to resubmit signed copies of the declarations he had provided to the court.

On August 5, 2022, after hearing argument from both parties, the court granted the DVPO and set the expiration one year from the issuance date. It found that the "unlawful harassment" component of domestic violence was most relevant to the circumstances and that Bennett's course of conduct served no legitimate purpose because he initiated the contact and he had received notice that Manning did not want him on her property. The court also found that Manning and TB were

² "Ring" is a manufacturer and operator of home surveillance and security products and services, including doorbell cameras.

³ Former chapter 26.50 RCW (2019) was repealed by the Laws of 2021, ch. 215, § 170 but was the chapter that pertained to domestic violence prevention at the time the DVPO was ordered, while chapter 7.105 RCW continues to govern civil protection orders.

intimidated by Bennett's behavior and that the issuance of a previous restraining order was relevant.

Bennett timely filed his notice of appeal in the trial court on September 6, 2022, and it was transmitted to this court on September 8. However, he subsequently filed four separate motions for extensions of time to file his opening brief, the last of which acknowledged that the DVPO had expired on August 5, 2023. Bennett's opening brief was filed on October 3, 2023.

ANALYSIS

Bennett asserts that the trial court erred in reviewing a privileged exchange of messages between him and his former wife, in denying his request for the production and admission of security camera footage from Manning's house, and in not addressing spoliation of that footage. He also argues that the words he used in the latter of the two incidents underlying the petition for the DVPO are protected by the First Amendment to the United States Constitution and that he has a constitutionally-protected interest in maintaining a relationship with his son. Bennett's fourth and final motion for extension of time to file his opening brief noted, "An extension would maintain the status quo, as *the DVPO has already expired (08/05/2023).*" (Emphasis added.) In the conclusion of his opening brief, filed October 3, 2023, Bennett acknowledges that, "[a]s of this writing, the protection order has been expired for nearly [two] months," and yet requests that this court reverse the order. In her response brief, Manning addresses Bennett's various arguments and moves for dismissal of the appeal as moot.

“A case is moot if a court can no longer provide effective relief.” *Maldondo v. Maldondo*, 197 Wn. App. 779, 790, 391 P.3d 546 (2017). Although we generally dismiss cases presenting only moot issues, we will consider issues that are of substantial and continuing interest. *Blackmon v. Blackmon*, 155 Wn. App. 715, 720, 230 P.3d 233 (2010). In determining whether a case presents an issue of substantial and continuing interest, three factors are determinative: whether the issue is of a public or private nature, whether a determination is likely to provide future guidance to public officers, and whether the issue is likely to reoccur. *In re Dep. of L.C.S.*, 200 Wn.2d 91, 99, 514 P.3d 644 (2022). The issuance of the DVPO is a private matter between Manning and Bennett and there is an abundance of case law to guide trial courts in the process of ruling on petitions for protection orders. Additionally, there is no indication that the precise evidentiary issues Bennett challenges here will arise in the future, even if Manning were to petition for a new protection order.

Most critically, while Bennett acknowledged in his final motion for an extension of time to file his opening brief, and in the brief itself, that the DVPO had already expired, he failed to engage with the test for mootness until his reply.⁴ It is well established that we will not evaluate the merits of an argument raised for the first time in a reply brief. See *In re Dep. of A.N.C.*, 24 Wn. App. 2d 408, 419, 520 P.3d 500 (2022) (quoting *Brown v. Vail*, 169 Wn.2d 318, 336 n.11, 237 P.3d

⁴ Bennett asserts in the “issue” portion of his reply brief that the DVPO is “public and falsely alleges domestic violence, which is highly detrimental to reputation, exponentially worse for someone striving to overcome a criminal history by building a good reputation.” These conclusory statements, even if true, are offered without citation to legal authority or fact-specific analysis, and more critically, presented for the first time in reply. Accordingly, we decline to consider this argument.

263 (2010) (“A party that offers no argument in its opening brief on a claimed assignment of error waives the assignment.”)). Accordingly, he has failed to satisfy his burden on appeal to establish that this panel should reach the merits of his challenges.

Manning’s motion to dismiss the appeal as moot is granted.⁵

WE CONCUR:

Díaz, J.

H. S. Arj

D. Manning, J.

⁵ In the conclusion of her response brief, Manning requests attorney fees on appeal, but fails to offer any legal basis for such an award. RAP 18.1(a) requires that a request for attorney fees under that rule be supported by citation to authority and argument “to advise the court of the appropriate grounds for an award of attorney fees as costs.” *Stiles v. Kearney*, 168 Wn. App. 250, 267, 277 P.3d 9 (2012). We decline to award fees as Manning’s request does not comply with the RAP.

IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON

MELVINA MANNING,

Respondent,

v.

ZACKARIAH JEREMIAH BENNETT,

Appellant.

No. 84450-4-I

DIVISION ONE

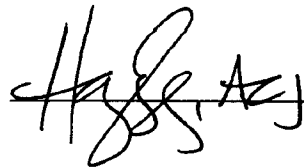
ORDER DENYING MOTION
FOR RECONSIDERATION

Appellant filed a motion for reconsideration on April 1, 2024. After consideration of the motion the panel has determined that the motion for reconsideration shall be denied.

Now, therefore, it is hereby

ORDERED that the motion for reconsideration is denied.

FOR THE COURT:



A handwritten signature in black ink, appearing to be 'H. S. A. J.', is written over a horizontal line.



EXHIBIT E

WASHINGTON SUPREME COURT LETTER AND “PETITION”
FILED BY MR. BENNETT

ERIN L. LENNON
SUPREME COURT CLERK

SARAH R. PENDLETON
DEPUTY CLERK/
CHIEF STAFF ATTORNEY

THE SUPREME COURT
STATE OF WASHINGTON



TEMPLE OF JUSTICE
P O BOX 40929
OLYMPIA, WA 98504-0929

(360) 357-2077
e-mail: supreme@courts.wa.gov
www.courts.wa.gov

April 10, 2024

LETTER SENT BY E-MAIL ONLY

Zackariah Jeremiah Bennett
17 Old Mountain Road
Goldendale, WA 98620
zackjbennett@gmail.com

Nancy Ann Gass
O.W. Hollowell & Associates
PO Box 1041
Carnation, WA 98014-1041
carnationlaw@comcast.net

Hon. Lea Ennis, Clerk
Court of Appeals, Division I
600 University Street
One Union Square
Seattle, WA 98101-1176

Re: Supreme Court No. 1029501 – Melvina Manning v. Zackariah Jeremiah Bennett
Court of Appeals No. 844504 – Division I
King County Superior Court No. 22-2-09380-3

Clerk, Counsel and Zackariah Bennett:

The Court of Appeals forwarded to this Court the Petitioner's pro se "MOTION FOR MODIFICATION OF DECISION". The only way to seek review of a Court of Appeals decision terminating review of a case is to file a petition for review with the Supreme Court. Therefore, the Petitioner's filing will be treated as a petition for review. The matter has been assigned the Supreme Court cause number indicated above.

It is noted that a copy of the Court of Appeals decision was not attached to the petition for review as required by RAP 13.4(c)(9). Please be advised that in the future, the Court of Appeals opinion should always be attached as an appendix when filing a petition for review.

The \$200 filing fee did not accompany the petition. The petition will be held until April 17, 2024, to allow the Petitioner time to pay the filing fee to this Court. If the filing fee is not received by **April 17, 2024**, it is likely that this matter will be dismissed. If the Petitioner believes he is unable to pay the filing fee, I have enclosed a GR 34 filing fee waiver request form and GR 34 financial statement with which waiver of the filing fee may be requested. The Petitioner should send the completed forms to the Supreme Court directly.

The parties are advised that upon receipt of the filing fee, a due date will be established for the filing of any answer to the petition for review.

The parties are referred to the provisions of General Rule 31(e) regarding the requirement to omit certain personal identifiers from all documents filed in this court. This rule provides that parties "shall not include, and if present shall redact" social security numbers, financial account numbers and driver's license numbers. As indicated in the rule, the responsibility for redacting the personal identifiers rests solely with counsel and the parties. The Clerk's Office does not review documents for compliance with the rule. Because briefs and other documents in cases that are not sealed may be made available to the public on the court's internet website, or viewed in our office, it is imperative that such personal identifiers not be included in filed documents.

The parties are advised that future correspondence from this Court regarding this matter will most likely only be sent by an e-mail attachment, not by regular mail. For attorneys, this office uses the e-mail address that appears on the Washington State Bar Association lawyer directory. Counsel are responsible for maintaining a current business-related e-mail address in that directory. For the Petitioner, this Court has an e-mail address of zackjbennett@gmail.com. If this e-mail address is incorrect or changed, the Petitioner should immediately advise this Court in writing.

Sincerely,



Sarah R. Pendleton
Supreme Court Deputy Clerk

SRP:ejn

Enclosures for Petitioner

(COURT OF APPEALS, DIVISION I)
OF THE STATE OF WASHINGTON
No. (844504)

(Manning) MOTION FOR
(vs) MODIFICATION
(Bennett) OF DECISION

1. IDENTITY OF MOVING PARTY

Zackariah J. Bennett,
appellant

2. STATEMENT OF RELIEF SOUGHT

Relief under RAP 13.4(b)(1)

Citing: Innovation Law Lab v. Mayorkas, 5 F.4th 1099
(9th Cir. 2021), and in keeping with “established” practice
for resolving a civil case that becomes moot pending review by
a higher court (whether the Supreme Court or a court of appeals).

Specifically:

Modification of decision to include vacatur of the judgment below,
and remand with a direction to dismiss .

3. SUPPORTING STATEMENT

I, Zackariah J. Bennett, do come before the court to request a
modification of the decision entered on 03/11/2024 to include

vacatur of the judgment below, and remand with a direction to dismiss.

This is in keeping with “established practice” in this type of case as shown in the recent Supreme Court decision in *Innovation Law Lab v. Mayorkas*, 5 F.4th 1099 (9th Cir. 2021); Citing *United States v. Munsingwear*, 340 U.S. 36, 71 S.Ct. 104, 95 L.Ed. 36 (1950)

Munsingwear addresses what to do with a court of appeals decision when the case becomes moot while it is pending on review by a higher court (whether the Supreme Court or a court of appeals). In *Munsingwear*, the Supreme Court held that, where intervening mootness prevents appellate review of the underlying decision, the decision below ordinarily should be vacated. “[T]he established practice of the Court in dealing with a civil case from a court in the federal system which has become moot while on its way here or pending our decision on the merits is to reverse or vacate the judgment below and remand with a direction to dismiss.” 340 U.S. at 39

“Disposing of a moot case in this manner thereby “clears the path for future relitigation of the issues between the parties and eliminates a judgment, review of which was prevented through happenstance.” Put another way, the *Munsingwear* procedure for disposing of cases that become moot on appeal “prevent[s] a judgment, unreviewable because of mootness, from spawning any legal consequences,” and thereby ensures that the federal appellate courts, rather than individual litigants, have the last word on the answers to legal questions.” *Munsingwear*, 340 U.S. at 40, 41

“The reason for this is ... to avoid giving preclusive effect to a judgment never reviewed by an appellate court.” *N.Y.C. Emps.’ Ret. Sys. v. Dole Food Co.*, 969 F.2d 1430, 1435 (2d Cir. 1992).

Vacatur is appropriate “to prevent a judgment, unreviewable because of mootness, from spawning any legal consequences.” *Munsingwear*, 340 U.S. at 41.

The counsel for Mrs. Manning is already claiming *res judica*

in an attempt to avoid litigating the allegations against her in a matter set for trial on 06/17/2024.

This is the exact type of situation that the Munsingwear procedure was established to address.

Respectfully submitted,
Zackariah J. Bennett,
Appellant

A handwritten signature in black ink, appearing to read 'Zackariah J. Bennett', followed by a horizontal line.

04/10/2024

Signature

(Date)

17 Old Mountain rd,
Goldendale, WA 9862

ZACKARIAH BENNETT - FILING PRO SE

April 10, 2024 - 6:39 AM

Transmittal Information

Filed with Court: Court of Appeals Division I
Appellate Court Case Number: 84450-4
Appellate Court Case Title: Melvina Manning, Respondent v. Zackariah J. Bennett, Appellant

The following documents have been uploaded:

- 844504_Motion_20240410063055D1924749_8614.pdf
This File Contains:
Motion 1
The Original File Name was Motion to modify.pdf

A copy of the uploaded files will be sent to:

- carnationlaw@comcast.net

Comments:

Sender Name: Zackariah Bennett - Email: zackjbennett@gmail.com
Address:
17 Old Mountain rd
Goldendale, WA, 98620
Phone: (541) 300-8792

Note: The Filing Id is 20240410063055D1924749



EXHIBIT F

DECLARATION OF MELVINA MANNING –
DOMESTIC VIOLENCE CASE

**Superior Court of Washington
For King County**

No. 22-2-09380-3

Melvina Catherine Manning 05/13/1959
Petitioner DOB

vs.

Zackariah Jeremiah Bennett 01/07/1981
Respondent DOB

**Declaration of
Melvina Catherine Manning (Name)
(DCLR)
(Optional Use)
(Clerk's Action Required)**

This declaration is made by:

Name: Melvina Catherine Manning

Age: 63

Relationship to the parties in this action: Parent of Zackariah Bennett, grandparent of Timothy Bennett

I declare,

I am responding to the latest paperwork (Declaration) that was filed by Zackariah Bennett.

1. **Alienation of Affections.** Zackariah was never wrongfully deprived of the company of his child. He was given several opportunities to meet with Timothy's counselor to start a reunification. He did not take those opportunities. He could have filed for a Parenting Plan or visitation rights with the Courts, but he never did.

2. **Defamation of Character.** False allegations of DV crimes against myself are clearly stated on the attached documents. We had a Restraining Order filed & approved because of the threats that Zackariah made. Timothy was never allowed to walk to his grade school or middle school as we were always wondering when Zackariah would try to kidnap Timothy. The schools were made aware of the circumstances as well.

3. **Intentional and/or Reckless Infliction of Emotional Distress.** He states that I made malicious statements to his children, yet he was in his car during the time his children were at my door. The only thing that was said to his children, of which Jessica heard and responded

to, was my apology about my 2 Boxers being so loud and aggressive. I explained they don't care much for strangers. Jessica responded "I told them you had 2 big dogs" I then asked her what she was doing here. She responded Zack wants to see Timothy & his brother & sister want to meet Timothy. I told her that is not happening and told them to leave. My declaration as well as the declaration of my neighbor Elizabeth Haskins has already been submitted. The Intentional Infliction of Emotional Distress was made by Zackariah & Jessica. These children should have never been sent to my door and should not have been forced to be a part of the drama that Zackariah knew would take place. He was told in June 2019 when he tried to lure Timothy out of our home, that he is not wanted here.

4. Zackariah is seeking an injunction on any prevention of communication between siblings. This hearing is not about visitation which is what almost all the filings Zackariah has made pertain to. He has had 10+ years to file in Family Law.

This is about harassment and the protection of Timothy. Timothy told his father he did not want to talk to or see him at this time. Zackariah became agitated and demanded to know why. Timothy simply said I'm not ready. Zackariah the demanded Timothy meet his siblings who were standing at the gate. Timothy politely said no thank you then walked away. Zackariah continues to harass us via the Court EFile system by filing documents that have nothing to do with the petition before you. We are asking for this order to be put into place so we can go about our lives without the constant worry of Zackariah showing up at our home. Timothy's school or his work.

I am submitting documents to show that we were death threats made against us from Zackariah Bennett as well as the handwritten statement from Timothy's mother.

(Attach additional single-sided pages if necessary and number them. Use form DVSTMT, Statement.)

I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at Carnation (city) WA (state) on 8/01/2022 (date).

Manning
Signature of Declarant

Melvina Manning
Print or Type Name

Superior Court of Washington For King County		No. 22-2-09380-3
<u>Melvina Catherine Manning</u> Petitioner	<u>05/13/1959</u> DOB	Declaration of <u>Melvina Catherine Manning (Name)</u> (DCLR) (Optional Use) (Clerk's Action Required)
vs. <u>Zackariah Jeremiah Bennett</u> Respondent	<u>01/07/1981</u> DOB	

This declaration is made by:

Name: Melvina Catherine Manning

Age: 63

Relationship to the parties in this action: Parent of Zackariah Bennett, grandparent of Timothy Bennett

I declare,

I am acting as Timothy Edward Bennett II's (age 15) advocate. He requested that the initial harassment order be filed on June 21, 2022, which then converted to a domestic violence order by the judge in Issaquah. The judge reviewed Zackariah's history of violence and previous restraining order from 2008 (08-3-03956-4 SEA), when making the decision to change our request from a harassment order to a protection order. Timothy has asked that Zackariah Bennett discontinue his showing up at our residence and bullying/harassment behaviors. This was the 2nd incident when Zackariah showed up uninvited to our residence and caused a scene. Zackariah indicated on July 1st to the judge, that he never left his vehicle, but our security video shows him standing on our porch, holding the screen door open, making demands to speak to Tim. Tim came into Zack's line of sight, but did not feel comfortable near him, told him he didn't want to speak to him, and then returned to his room. Zackariah's body language, and mannerisms are indications of harassment and intimidation that made neither Timothy nor myself comfortable. Zackariah showed up to our residence on June 23, 2019 when he sent his ex-girlfriend to the door to try to get Timothy to open the door. She banged on the door, tried opening the door, while Zackariah was honking on his horn. We called the police after this incident also, however since they had already left, the only thing they said we could do was file a harassment order. We chose to let it go at that time.

In regards to the various RCW citations that Zackariah cited, the definition of domestic violence changed in 2022 to include "engaging in psychological aggression, including inflicting fear, humiliating, degrading, or punishing the other party." Zackariah continually showing up to our residence, unannounced, uninvited, proceeding to harass, degrade myself, make continued threats and accusations, meets the definition of domestic violence and harassment. On April 3rd, 2022, Zackariah posted on his Facebook asking if "Do any of you have kids attending Carnation High School? Hit me up if so." This then caused a level of alarm to Tim and our family.

As Timothy's advocate, he has indicated to his grandfather and I that he does not want a relationship with Zackariah Bennett at this time. He is 15-½ years old and we allow him to make this choice on his own. We all feel that Zackariah's continue harassment and bullying behaviors have gone too far and are asking that the judge uphold the initial protection order and make this a permanent order. He doesn't respect boundaries. We would also like this to apply to his wife Jessica Bennett also, as she comes with him and is also a party in these unwelcome visits also.

(Attach additional single-sided pages if necessary and number them. Use form DVSTMT, Statement.)

I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

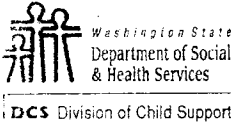
Signed at Carnation (city) WA (state) on July 18, 2022 (date).

Manning
Signature of Declarant

Melvina Manning
Print or Type Name

EXHIBIT G

DCS NOTICE



STATE OF WASHINGTON
DEPARTMENT OF SOCIAL AND HEALTH SERVICES
DIVISION OF CHILD SUPPORT (DCS)

Debt Adjustment Notice



TO: MELVINA MANNING
4941 327TH AVE NE
CARNATION WA 98014-6311

RE: ZACKARIAH BENNETT

CASE NUMBER: 2073961

The Division of Child Support (DCS) reduced the amount of past-due child support DCS will collect and send you. If you have questions, contact your Support Enforcement Officer at the address or telephone numbers listed below.

DCS reduced the debt by \$ 38,263.07 because of the reason(s) marked below. (See the explanation below.)

- ☐ DCS found an error in the calculation used to set the debt amount.
- ☐ DCS found a data entry error that results in a lower debt amount.
- ☐ DCS received proof that we should have suspended the support obligation for all or part of the period used to calculate the debt amount.
- ☐ DCS received proof that all or part of the debt was paid.
- ☒ Other.

Explanation: NCP PARENTAL RIGHTS TERMED 3/31/2013 PER CONFERENCE BOARD DECISION.

If you disagree with this action, you may ask for a hearing.

- If you want a hearing, call DCS at the telephone numbers listed below or complete and return page 2 of this form.
- You must ask for a hearing within 20 days after the date on this notice.
- DCS will notify the noncustodial parent of the hearing. The noncustodial parent may take part in the hearing.

If you do not ask for a hearing within 20 days after the date on this notice, you may ask for a late hearing.

- The Administrative Law Judge may require you to provide a good reason for asking for a late hearing.
- DCS will continue to enforce your support order even if you ask for a hearing.

July 24, 2023
DATE

R KILLEBREW
AUTHORIZED REPRESENTATIVE
DIVISION OF CHILD SUPPORT

DIVISION OF CHILD SUPPORT
PO BOX 11520
TACOMA WA 98411-5520

Within Seattle calling area (206) 341-7000

Outside Seattle calling area (800) 526-8658

TTY/TDD services available for the speech or hearing impaired.

Visit our web site at: www.dshs.wa.gov/dcs